



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR ADMINISTRATION OF FUNDING ASSISTANCE TO BOARDS OF COOPERATIVE EDUCATION SERVICES IN IMPLEMENTING AND MEETING STATE EDUCATIONAL PRIORITIES

1 CCR 301-89

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

0.00 STATEMENT OF BASIS AND PURPOSE

These rules are promulgated pursuant to Colorado Revised Statutes section 22-2-107 (1) (c) and section 22-5-122 (6). Section 22-5-122, C.R.S., authorizes the Colorado Department of Education to administer state moneys to Boards of Cooperative Education Services to assist their participating school districts in implementing and meeting the state's educational priorities. Section 22-5-122 (6), C.R.S., requires the Colorado State Board of Education to promulgate rules for the administration of this funding.

1.00 DEFINITIONS

- 1.01 "BOCES" or "Board of Cooperative Services" shall have the same meaning as provided in section 22-5-103 (2), C.R.S.
- 1.02 "Commissioner" means the office of the commissioner of education created and existing pursuant to section 1 of article IX of the state constitution.
- 1.03 "Department" means the Colorado Department of Education created pursuant to section 24-1-115, C.R.S.
- 1.04 "School District" or "District" means a School District organized and authorized by section 15 of Article IX of the state constitution and organized pursuant to article 30 of title 22, Colorado Revised Statutes.
- 1.05 "State Board" means the State Board of Education established pursuant to Section 1 of Article IX of the state constitution.

2.00 ELIGIBILITY AND APPLICATION FOR FUNDING

- 2.01 On or before June 1, 2012, on or before March 1, 2015, and on or before March 1 every third year thereafter, the Commissioner, in consultation with a statewide association in the state that represents one or more BOCES in the state and a council created by the Commissioner that advises the Commissioner and the Department regarding the needs and concerns of rural school districts in the state, shall determine the state's educational priorities for purposes of section 22-5-122, C.R.S. The priorities may include, but need not be limited to, educator effectiveness, School District accreditation and accountability, and standards and assessments for preschool through elementary and secondary education.
- 2.02 For the 2012-13 fiscal year and each fiscal year thereafter, a BOCES may receive state moneys, in addition to any other moneys received pursuant to Article 22, by submitting a plan to the State Board that details how the BOCES will use the additional moneys to assist its participating School Districts in implementing and meeting the state's educational priorities.

- 2.03 Plans submitted by BOCES to the State Board shall be submitted electronically, using a template provided by the Department, and shall include the following information:
- 2.03 (A) A description of how the BOCES will use the additional moneys to assist its participating School Districts in implementing and meeting the state's educational priorities;
 - 2.03 (B) Information about which School Districts will be participating in the plan and evidence that the participating School Districts have reviewed and consented to the plan;
 - 2.03 (C) Information concerning the key personnel who will be responsible for the activities described in the plan and general timelines for when the activities will be carried out;
 - 2.03 (D) The measureable student outcomes that the BOCES expects its School Districts to achieve as a result of the activities described in the plan; and
 - 2.03 (E) For the 2013-14 fiscal year, and each fiscal year thereafter, for a BOCES that also submitted a plan in the previous fiscal year, a description of the results of the previous year's plan.
- 2.04 The Department will review the plans submitted and work with applicants to ensure quality plans likely to deliver desired student outcomes.
- 2.05 A BOCES may develop a memorandum of understanding with a School District that is contiguous to the area of the BOCES, but that is not a member of the BOCES, to enable the District to participate with the BOCES in the plan submitted to the State Board.
- 2.06 Two or more BOCES may collaborate regarding the implementation of a plan submitted to the State Board.
- 2.07 If a BOCES chooses not to submit a plan to the State Board, the member Districts of that BOCES shall be permitted to submit a plan as a consortium of Districts or as a newly formed BOCES. Districts that submit a plan as a consortium shall identify a lead District to administer and account for the funds on behalf of the consortium.
- 2.08 If a BOCES submits a plan to the State Board, one or more of its member School Districts may choose not to participate in the BOCES plan. This shall not prevent the BOCES ability to work with the BOCES' other member School Districts to implement the plan.

3.00 DISTRIBUTION OF FUNDING

- 3.01 The Colorado General Assembly may appropriate moneys to the Department for purposes of section 22-5-122, C.R.S. Of the amount appropriated, the Department may retain up to one hundred twenty thousand dollars annually for the purpose of funding a Departmental liaison for rural School Districts and up to fifty thousand dollars annually for the purpose of funding the Department's ongoing support of a council created by the Commissioner that advises the Commissioner and the Department regarding the needs and concerns of rural School Districts. The Department shall distribute the remaining amount appropriated by the General Assembly for purposes of section 22-5-122, C.R.S. as described in sections 3.02-3.04 of these rules.
- 3.02 Of the amount remaining after subtracting the amounts specified in section 3.01 of these rules, the Department shall distribute the appropriated funding as follows:
- 3.02 (A) Forty-five (45) percent shall be distributed equally to the BOCES that submit plans as described in section 2.03 of these rules.

3.02 (B) Forty-five (45) percent shall be distributed based on the total number of member School Districts of the participating BOCES and nonmember School Districts that participate with the BOCES as detailed in the memorandum of understanding entered into pursuant to section 2.04 of these rules.

3.02 (C) Ten (10) percent shall be distributed based on the total number of students enrolled in the member School Districts of the participating BOCES and enrolled in the nonmember School Districts that participate with the BOCES as detailed in the memorandum of understanding entered into pursuant to section 2.04 of these rules. The total number of students enrolled shall be determined using the prior year's District funded pupil count.

3.03 For purposes of distributing funding pursuant to section 22-5-122, C.R.S., School Districts shall select a single BOCES or consortium of Districts with which to be affiliated.

Editor's Notes

History

Entire rule emer. rule eff. 08/30/2012; expired 12/06/2012.

Entire rule eff. 04/15/2013.